

this would prejudice him. The Court also notes that Plaintiff did not file a Reply to address any of Defendant's points.

Given the above, the Court finds that this factor weighs in favor of Defendant.

Summary and Conclusion

Weighing the *Doe* factors outlined above, the Court finds there is no basis to disqualify Ms. Woodruff as counsel for Defendant.

Plaintiff's Motion is **DENIED**.

10. 9:00 AM CASE NUMBER: MSC20-00271

CASE NAME: MENASCO VS KILARR

ATTORNEYS FEES MOTION FILED

FILED BY:

TENTATIVE RULING:

Parties to Appear.

11. 9:00 AM CASE NUMBER: MSN20-1173

CASE NAME: TOBIAS M LESTER VS DEBORAH COOPER

AWARD OF REASONABLE ATTORNEY FEES AND COSTS

FILED BY:

TENTATIVE RULING:

Petitioner Tobias Lester ("Petitioner") filed a Motion for Award of Reasonable Attorneys' Fees and Costs on January 23, 2026 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$75,385.00 in attorneys' fees, with a 2.00 multiplier, for a total of \$145,520.00, plus \$2,535.93 in costs. The Motion for Fees and Costs was set for hearing on June 8, 2026. The Court *sua sponte* continued the matter from June 8, 2026 to August 31, 2026. The motion is opposed.

Background

This matter arises from a Petition for Writ of Mandate filed nearly six years ago in connection with a Petitioner's challenge to a proposed local ballot measure in Contra Costa County, Measure X, relating to a sale tax increase (the "Proposed Sales Tax Measure").

The petition was largely resolved at the time by a pair of Orders entered by the Court in August 2020. See Orders entered August 27, 2020. Those orders essentially granted relief on two matters: (1) that the proposed ballot measure question language "be amended by removing the phrase 'requiring fiscal accountability';" and (2) that the proposed impartial analysis language be amended by deleting a sentence ("State law authorizes Contra Costa County to adopt an ordinance proposing a one-half 20 of one percent (0.5%) sales tax."). As later stipulated, the latter assertion was a misstatement of the then existing law.

The Court notes that year ago, the Court rejected a proposed form of judgment, arguably having considered its two August 2020 orders constituting the judgment in the writ proceeding. See County of Contra Costa's Objection to Petitioner's Proposed Judgment filed June 29, 2021 and Clerk's

Correspondence Memo dated January 7, 2022.

The confusing procedural history is summarized at length in the Court's prior ruling on Petitioner's motion to amend that preceded the Amended Petition filed in October 2024. See Minute Order dated September 30, 2024. Ultimately, the Court concluded that a final judgment on all claims had not been properly entered previously. *Id.*

After a second skirmish by way of a demurrer to the Amended Petition, the matter was resolved by way of a "STIPULATED SETTLEMENT AND FINAL JUDGMENT" filed July 21, 2025 (the "July 2025 Stipulation" and the "July 2025 Judgment," respectively).

The Court reserved jurisdiction to consider any award of fees and costs. See July 2025 Judgment, ¶15 ("The Court shall retain jurisdiction over any motion Petitioner might make for attorneys' fees and/or costs associated with this action brought consistent with California Rules of Court, rules 3.1700 and 3.1702, and other applicable laws")

Petitioner has now brought this motion for an award of fees and costs.

The Motion for Fees and Costs is supported by the declaration of Petitioner's attorney summarizing the conduct of the litigation and outcome achieved. See Declaration of Jason A. Bezis filed January 23, 2026 ("Bезis Decl.") ¶19 *et seq.*; see Amended Declaration of Jason A. Bezis filed May 8, 2026 ("Amended Bezis Decl.") ¶19 *et seq.* Petitioner also submitted the Declaration of Timothy A. Bittle filed May 8, 2026.

Counsel Bezis' declaration describes the billing attorneys' and paralegals' background and professional experience and the reasonableness of their billing rates. See Amended Bezis Decl., ¶14 *et seq.* The declarations describe the work done, the results achieved and proffers supporting billing records. *Id.* at ¶19 *et seq.* and **Exhibit 1** thereto.

The total "base" amount billed was **\$75,385.00** (\$72,760.00 plus \$2,625.00). Bezis Decl., ¶¶28-30 and **Exhibit 1** thereto. Plaintiff seeks a "lodestar multiplier" of 2.00 in light of, among other things, the contingency representation, the conduct of the litigation and the outcome achieved. See *id.* at ¶26 *et seq.*; see also Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p. 16 *et seq.*

Real Parties in Interest Contra Costa County and Contra Costa County Board Of Supervisors (collectively, the "County") filed an Opposition on May 21, 2026, along with an opposition declaration ("Russi Decl.").

Petitioner filed a Rely on June 1, 2026, along with a supplemental Declaration of Jason A. Bezis filed June 1, 2026 ("Supp. Bezis Decl.")

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at

1096.

The Court has reviewed the stated hours and the nature of the legal work reflected in the proffered billing entries, considering, among other things, the work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rate for such work (\$500.00 per hour through September 2020 and escalating in subsequent years up to \$620.00 per hour as of 2026) and the number of hours reasonably expended. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court finds the hours billed and the total base fees of \$75,385.00 to be reasonable and necessary to the conduct of the litigation.

The Court further finds that the time incurred in connection with the reply, **\$3,038.00**, be reasonable and necessary to the conduct of the litigation. \$75,385.00 plus \$3,038.00 equals **\$78,423.00**.

The Court further finds that the a lodestar multiplier of 1.25 is just and appropriate in view of all of the relevant factors. \$47,909.50 times 1.25 equals **\$98,028.75**.

The Court has considered and rejects the County's arguments to the effect that Petitioner has not shown entitlement to recoup attorneys' fees pursuant to Code of Civil Procedure section 1021.5.

Realistically assessing the litigation and its outcome, Petitioner successfully sought and obtained rulings by this Court mandating substantive changes to county-wide ballot language. See Orders entered August 27, 2020. While arguably narrow in scope, this relief was nonetheless significant and had a material impact on the ballot measure question language to be considered by the county voters. The July 2025 Stipulation also effectively represented a material success for Petitioner, albeit again on a narrow but important issue.

The Court finds that Petitioner was the successful prevailing party on the core relief sought, that the action resulted in the enforcement of an important right affecting the public interest, that a significant benefit was conferred on the general public or a large class of persons, and that the necessity of private enforcement and the attendant financial burden make an award of fees appropriate.

The Court has considered and rejects the County's arguments to the effect that the fees claimed were not reasonable.

The Court does not make any determination, at this stage, as to the parties from whom Petitioner is entitled to recover the awarded fees and costs.

Costs

The Court finds that the claimed costs in the amount of **\$2,535.93** are recoverable and were necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is **GRANTED**.
2. Petitioner is awarded and shall recover attorneys' fees in the sum of **\$98,028.75**.
3. Petitioner is awarded and shall recover costs of suit in the sum of **\$2,535.93**.
4. **PARTIES TO APPEAR** to address the parties from whom Petitioner is entitled to recover the awarded fees and costs.

12. 9:00 AM CASE NUMBER: N23-0180
CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ

TAX COSTS

FILED BY:

TENTATIVE RULING:

Petitioner and plaintiff Thomas Butt ("Petitioner") filed a Motion to Strike or Tax Costs on February 9, 2026 (the "Motion to Tax Costs"). The Motion to Tax Costs was initially set for hearing on June 22, 2026. The hearing was subsequently continued to August 31, 2026.

Background

A judgment was entered on January 20, 2026 (the "Judgment"). The Judgment determined that defendants and respondents ("Defendants") are the prevailing parties, after a Motion for Judgment on the Pleadings as to Petitioner's Verified Petition was granted without leave to amend. See Judgment, p. 2.

Thereafter, a Memorandum of Costs was filed by defendants on February 9, 2026 (the "Memo of Costs"). The Memo of Costs seeks an award of \$3,400.19 in total costs.

Petitioner then brought this Motion to Tax Costs.

No opposition has been filed.

In connection with the initial hearing date on June 22, 2026, the Court issued a tentative ruling ordering the parties to meet and confer regarding the Cost Items at Issue, as set forth below. That tentative ruling was adopted as the order of the Court. See Order entered June 22, 2026 (the "June 22nd Order").

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

The Motion to Tax Costs takes issue with three cost items (the "Cost Items at Issue"):

- 1. Cost Item 1 in the Amount of \$495 for Filing and Motion Fees.** Petitioner contends that these are not recoverable because "these fees are waived by statute for public entities and thus not incurred."
- 2. Cost Item 9 in the Amount of \$1,754.36 for Court-Ordered Transcripts.** Petitioner asserts that "no transcripts were ordered by the Court"
- 3. A Portion of Cost Item 14 in the Amount of \$243.00 for Fees for Electronic Filing or Service.** Petitioner contends that "the claimed personal service expense is not an electronic filing or service fee and is improperly included in this category."

Pursuant to the Court's June 22nd Order, Defendants were ordered file a declaration under penalty of